

Telangana State Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2014

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State of Telangana - Act

Telangana State Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2014

TELENGANA

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Telangana State Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2014

Rule

TELANGANA-STATE-RIGHT-TO-FAIR-COMPENSATION-AND-TRANSPARENCY-IN-LAND-ACQUISITION-REHABILITATION-AND-RESETTLEMENT-RULES-2014 of 2014

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Telangana State Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2014

Published vide Notification G.O.Ms.No.50 Revenue(JA&LA) Department, dated 19.12.2014

Chapter - I General

1.

Short title , extent and commencement.

- 1. These rules may be called the Telangana State Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2014.

2.

They shall extend to the whole of the State of Telangana.

2. Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act No.30 of 2013);

(b)

"Agency" means an agency appointed by the Government/Commissioner, Rehabilitation and Resettlement to do the Social Impact Assessment Process and prepare the Social Impact Management Plan;

(c)

"Appropriate Government" means the State Government and includes the District Collector appointed by notification made by state government for any extent of land to be acquired for a public purpose within the jurisdiction of the revenue district;

(d)

"Collector" means the District Collector and includes the Joint Collector, Additional Joint Collector, Sub Collector, RDO, Special Collector, Special Deputy Collector and any other officer designated by the State Government to perform all or any of the functions of the Collector under the Act;

(e)

"Form" means Forms appended to these rules;

(f)

"Gram Panchayat" means the body constituted for the local administration of a village under section 2(17) of the Telangana State Panchayat Raj Act, 1994 ;

(g)

"Gram Sabha" means (i) the Gram Sabha as defined under section 6 of the Telangana State Panchayat Raj Act 1994; (ii) for forest areas as defined under clause (g) of section 2 of the Scheduled Tribes and other Transitional Forest Dwellers Act, 2006.

(h)

Urban Area means area declared as Municipality or Nagarapalika or Municipal Corporation as per Article No.243 Q of part IX A of the Constitution of India.

(i)

"Landless" means any resident of the State of the Telangana who is major and who owns the land within the limits specified in Section 2 (3) of the AP Assigned Lands (POT) Act, 1977 and includes any person losing entire lands under Acquisition.

(j)

"Specified Person" means State Government/Government Company and includes Association of Persons/Trust/Society established and registered under the relevant Acts and Societies, wholly or partially aided/controlled by the Government.

(k)

"State Government" means the Government of Telangana;

(2)

All words and expressions used but not defined in these rules shall have the meanings assigned to them in the Act.

Chapter II

Requisition for land Acquisition

3.

Requisition for land Acquisition.

(1)

Any requiring body or its representative, duly authorized, for whom land is to be acquired shall file the Requisition to the

District Collector and Commissioner, Rehabilitation & Resettlement in Form-I appended to these rules, together with the documents mentioned therein. In case of acquisition for Government, the requisition shall be filed by concerned Secretary of the Department or a person authorized by the State Government, by a general order, in this behalf.

4.

Action by District Collector on receiving requisition.

(1)

The District Collector upon receiving requisition shall constitute a team of revenue and agriculture officers to make field visit along with the representative of the requiring body to make a preliminary enquiry about the correctness of the particulars furnished in the requisition including the enquiry whether the requisition is consistent with the provisions of the Act, and submit a report to the District Collector.

(2)

If the District Collector, based on the report of the team, other information available with him and instructions issued by the State Government in this regard, is satisfied that the requisition is consistent with the provisions of the Act; he shall calculate the estimated cost of acquisition and other charges and arrive at administrative cost. The District Collector will then inform the Requiring Body to deposit the administrative cost in his office. Similarly the Commissioner, Rehabilitation & Resettlement upon receiving the copy of the requisition shall calculate the cost of carrying out Social Impact Assessment study (processing fee) and in due course intimate to the requiring body under intimation to the District Collector. The requiring body shall deposit the administrative cost in the office of the District Collector and cost of undertaking Social Impact Assessment study in the office of Commissioner, Rehabilitation & Resettlement within the stipulated intimated time.

(3)

The requiring body shall also be required to deposit the amount calculated for Rehabilitation and Resettlement at the appropriate time of the displacement of affected families in the same manner. The requiring body shall deposit the above mentioned costs within the time stipulated by the District Collector. Further process under the Act shall start only after depositing these costs.

Chapter III

Social Impact Assessment (SIA)

5.

Acquisition under Urgency Provisions and Exemption from Social Impact Assessment Study.

- Where any land is proposed to be acquired invoking urgency provisions under section 40 of the Act and if it is considered expedient to do so and if such urgency falls within the purview of section 40 (2), the District Collector shall submit a report to the State Government seeking permission to invoke the urgency provisions giving cogent reasons and for exemption from undertaking social impact assessment study in such acquisition. The State Government shall examine the proposal and if satisfied that urgency provisions may be resorted to, communicate its decision to the District Collector. The District Collector thereafter shall proceed with the acquisition in accordance with provisions of the Act and these Rules.

6.

Social Impact Assessment Study.

(1)

The Government / Commissioner, Rehabilitation & Resettlement shall be the Competent Authority for the State Social Impact Assessment Unit to arrange to carry out Social Impact Assessment Study.

(2)

The District Collector shall, within a period of fifteen days from the date of deposit of the processing fee for carrying the Social Impact Assessment study by the Requiring Body, issue a notification for carrying out Social Impact Assessment (SIA) in accordance with Part-B of FORM-II appended to these rules. The same shall be made available in Telugu language to the Gram Panchayat, Mandal Parishad, Municipality or Municipal Corporation, as the case may be, and in the offices of the District Collector, the Sub-Divisional Magistrate and the Tahsildar at Mandal level. The notification shall be published by way of a public notice by affixing at some conspicuous places in the affected areas and shall be uploaded on the website of the State Government and the revenue district concerned.

(3)

The Social Impact Assessment shall be conducted in consultation with concerned Gram Panchayat, Mandal Parishad,

Municipality or Municipal Corporation, as the case may be, at village level or ward level in the affected areas, for the purposes of section 4 of the Act, followed by a public hearing at the affected areas by giving adequate publicity about the date and time and venue for the public hearing to ascertain the views of the affected families which shall be recorded in writing.

(4)

The Social Impact Assessment Report shall be submitted in Form-III appended to these rules to the Commissioner, R&R within a period of Six months from the date of commencement and shall include the views of the affected families recorded in writing.

(5)

The Social Impact Assessment Report including summaries shall be prepared and divided into two parts;

(i)

the Social Impact Assessment Report; and

(iii)

the Social Impact Management Plan.

(6)

The Social Impact Management Plan listing the ameliorative measures required to be undertaken for addressing the impact of the project under sub-section (6) of Section 4 shall be submitted in FORM-IV appended to these rules to the Commissioner, R&R.

(7)

The Social Impact Assessment Report and the Social Impact Management Plan shall be made available in the Telugu language to the concerned Gram Panchayat, Mandal Parishad, Municipality or Municipal Corporation, at village level or ward level in the affected areas and in the Offices of the District Collector, the Sub-Divisional Officer and Tahsildar. It shall also be published by way of a public notice by affixing at some conspicuous places in the affected areas and shall be uploaded on the website of the State Government and the revenue district concerned.

7.

Institutional support and facilitation for Social Impact Assessment.

- The State Social Impact Assessment Unit shall undertake the following tasks namely:-

(a)

build and continuously expand a State Database of Qualified Social Impact Assessment Resource Partners and Practitioners, which will serve as a network of individuals and institutions with the required skills and capacities to conduct Social Impact Assessments for land acquisition and Rehabilitation and Resettlement;

(b)

respond immediately to the State Government or District Collector's request for an Social Impact Assessment to be conducted by preparing a project-specific Terms of Reference (hereinafter referred to as ToR);

(c)

conduct training and capacity building programmes for the Social Impact Assessment team and community surveyors and make available manuals, tools, comparative case study reports and other materials required for the analysis;

(d)

provide ongoing support and corrective action, as required during the Social Impact Assessment process;

(e)

ensure that the transaction based web-based workflow for Social Impact Assessments and MIS for land acquisition and Rehabilitation and Resettlement as specified in rule 16 is maintained and that all relevant documents are disclosed as per the provisions of the Act;

(f)

maintain, catalogue of all Social Impact Assessments and associated primary material; and

(g)

continuously review, evaluate and strengthen the quality of SIAs and the capacities available to conduct them across the State.

8.

Project-specific Terms of Reference (ToR) and Processing Fee for the Social Impact Assessment.

(1)

The District Collector after depositing of administrative cost by the requiring body and such other verification as may be required shall send a proposal for such land acquisition along with all the relevant documents to the Commissioner, Rehabilitation & Resettlement, which shall-

(a)

prepare a detailed project-specific Terms of Reference for each proposal of land acquisition, listing all the activities that must be carried out indicating the appropriate team size (and number of field teams) and profile of the team members, and stipulate the schedule and deadlines for key deliverables for the Social Impact Assessment as detailed in Part-A of FORM-II appended to these rules;

(b)

determine estimated Social Impact Assessment fee based on the Terms of Reference with clear break-up of costs for each item or activity. The fee amount shall be based on defined parameters including area, type of project and number of affected families.

(2)

Ten per cent of the Social Impact Assessment fee shall be allocated to Social Impact Assessment Unit as administrative expenses for preparing the Terms of Reference (ToR) and estimated Social Impact Assessment fee report.

(3)

The Requiring Body shall deposit the Social Impact Assessment fee in the Scheduled Bank account of the appropriate Government.

9.

Selection of the SIA team.

(1)

The Commissioner, R&R shall select the SIA team for each project from the individuals and institutions registered or empanelled in the State Database of Qualified Social Impact Assessment Resource Partners and Practitioners.

(2)

The Requiring Body shall not be involved in any way in the appointment of the Social Impact Assessment team being appointed to carry out the Social Impact Assessment.

(3)

The size and selection criteria for the Social Impact Assessment team shall be as per the project-specific Terms of Reference developed by the State Social Impact Assessment Unit.

(4)

The Social Impact Assessment team may be constituted by appointing individuals or an organization with experience in conducting SIAs or related field-based assessments and the team may include-

(i)

a combination of independent practitioners, qualified social activists, academics, technical experts, who are not directly connected with the requiring body; and

(ii)

at least one woman member;

(5)

A team leader shall be appointed from amongst the Social Impact Assessment team to liaison with the State Social Impact Assessment Unit throughout the assessment period.

(6)

While selecting the Social Impact Assessment team, it is to be ensured that there is no conflict of interest involving the team members appointed to assess the concerned project.

(7)

If at any stage, it is found that any team member or any family member of the team member directly or indirectly receives any benefit from the Requiring Body or any other stakeholder in the project, the said member shall be disqualified.

10.

Process of conducting the Social Impact Assessment.

(1)

The Social Impact Assessment team shall collect and analyze a range of quantitative and qualitative data, undertake

detailed site visits, use participatory methods such as focused group discussions, participatory rural appraisal techniques and informant interviews in preparing the Social Impact Assessment report.

(2)

All relevant project reports and feasibility studies shall be made available to the Social Impact Assessment team throughout the Social Impact Assessment process, as required. Any request for information from Social Impact Assessment team shall be met at the earliest but not exceeding seven days. The District Collector shall be responsible for providing the information requisitioned by the Social Impact Assessment team.

(3)

A detailed assessment based on a thorough analysis of all relevant land records and data, field verification, review and comparison with similar projects shall be conducted by the Social Impact Assessment team. The assessment shall determine the following, namely:-

(a)

area of impact under the proposed project, including both land to be acquired and areas that will be affected by environmental, social or other impacts of the project;

(b)

area and location of land proposed to be acquired for the project;

(c)

the land proposed for acquisition is the bare minimum required;

(d)

possible alternative sites for the project and their feasibility;

(e)

whether the land proposed for acquisition is irrigated multi-cropped land and if so, whether the acquisition is a demonstrable last resort;

(f)

land, if any, already purchased, alienated, leased or acquired, and the intended use for each plot of land required for the project;

(g)

the possibility of use of any public, unutilised land for the project and whether any of such land is under occupation;

(h)

nature of the land, present use and classification of land and if it is an agricultural land, the irrigation coverage for the said land and the cropping pattern;

(i)

the special provisions with respect to food security have been adhered to in the proposed land acquisition;

(j)

size of holdings, ownership patterns, land distribution, number of residential houses, and public and private infrastructure and assets; and

(k)

land prices and recent changes in ownership, transfer and use of lands over the last three years.

(4)

Based on the land assessment, land records and field verification, the Social Impact Assessment team shall provide an accurate estimate of the number of affected families and the number of displaced families among them and ensure that, as far as possible, all affected families are enumerated:

Provided that where enumeration is not possible, a representative sample shall be done.

(5)

A socio-economic and cultural profile of the affected area must be prepared, based on available data and statistics, field visits and consultations as per Form-III:

Provided that in projects where resettlement is required, the identified resettlement sites shall be visited and a brief socio-economic profile of the land and its current resident population shall be indicated.

(6)

Based on the data collected in processes listed above and in consultation with the affected communities and key stakeholders, the Social Impact Assessment team shall identify and assess the nature, extent and intensity of the

positive and negative social impacts associated with the proposed project and land acquisition as per FORM-III.

(7)

The Social Impact Assessment process includes the preparation of a Social Impact Management Plan (SIMP), which will present the ameliorative measures to be undertaken to address the social impacts identified in the course of the assessment. The Social Impact Assessment team must assess the viability of impact mitigation and management strategies with clear indication of costs, timelines and capacities. The Social Impact Management Plan shall include the following measures-

(a)

that have been specified in the terms of Rehabilitation and Resettlement and compensation for all the categories of affected families as mentioned in the Act;

(b)

that the Requiring Body has stated that it will undertake in the project proposal and other relevant project documents; and

(c)

that additional measures being undertaken by the Requiring Body, which have been undertaken by it in response to the findings of the Social Impact Assessment process and public hearings.

(8)

The Social Impact Assessment team must provide a conclusive assessment of the balance and distribution of the adverse social impacts and social costs and benefits of the proposed project and land acquisition, including the mitigation measures, and provide an assessment as to whether the benefits from the proposed project exceed the social costs and adverse social impacts that are likely to be experienced by the affected families or even after the proposed mitigation measures, the affected families remained at risk of being economically or socially worse, as a result of the said land acquisition and resettlement.

11.

Process for conducting public hearings.

(1)

Public hearings shall be held in the affected areas to bring out the main findings of the Social Impact Assessment, seeking feedback on the findings and to seek additional information and views for incorporating the same in the final documents.

(2)

Public hearings shall be conducted in all Gram Sabhas the members are directly or indirectly affected by the acquisition of the land.

(3)

The date and venue of the public hearing must be announced and publicized by the State Social Impact Assessment Unit with assistance of Collector one week in advance through public notifications affixed at some conspicuous places in all the villages where the land is proposed to be acquired through direct communication with Gram Panchayat or Municipal Ward representatives and by uploading the information on the website of the concerned district.

(4)

The draft Social Impact Assessment report and Social Impact Management Plan shall be published in the telugu language one week prior to the public hearing and distributed to all affected Gram Panchayats and Municipal offices. One copy of the draft report shall be made available in the offices of the District Collector, the SDM and the Tahsildar concerned. The Requiring Body may also be served with a copy of the draft report. Adequate copies of the report and summaries shall be made available on the day of the public hearing.

(5)

A member of the Social Impact Assessment team shall facilitate the public hearing. The concerned Tahsildar, Mandal Parishad Development Officer and Station House Officer of respective police station shall also be present in the public hearing to assist the Social Impact Assessment team. The Gram Panchayat or Municipal Ward representatives shall also be involved in all the decisions regarding the arrangements for the public hearings in their respective areas.

(6)

All the proceedings shall be held in the telugu language with effective and credible translators to ensure that all the participants could understand and express their views.

(7)

Representatives from the Requiring Body and District Land Acquisition Officer and Administrator shall also attend the public hearing and address the questions and concerns raised by the affected parties.

(8)

Public representatives, local voluntary organizations and media shall also be invited to attend the public hearings.

(9)

The proceedings of the public hearing shall be video recorded and transcribed accordingly. This recording and transcription shall be submitted along with the final Social Impact Assessment report and Social Impact Management Plan to the Collector.

(10)

After the conclusion of the public hearings, the Social Impact Assessment team shall analyze the entire feedback received and information gathered in the public meetings and incorporate the same along with their analysis, in the revised Social Impact Assessment report accordingly.

(11)

Every objection raised in the public meeting shall be recorded and the Social Impact Assessment team shall ensure that the every objection shall be considered in its report.

(12)

Procedure/format for seeking Grama sabha consent shall be as mentioned in the LA R&R (SIS and Consent) Rules, 2014.

12.

Submission of Social Impact Assessment Report and Social Impact Management Plan.

- The Social Impact Assessment Report and Social Impact Management Plan shall be prepared in the telugu language and shall be made available to Grama Panchayat, Mandal Parishad, Municipality or Municipal Corporation, as the case may be, and the offices of the District Collector, the Sub-Divisional Magistrate and the Tahsildar and shall be uploaded on the website of the State Government and the district concerned.

13.

Appointment of expert Group.

- The appropriate government/District collector shall select an independent multidisciplinary Expert Group duly taking the proposals of District Collectors into consideration, for making of appraisal of Social Impact Assessment report and Social Impact Management Plan. The expert group shall consist two social scientists, two representatives of panchayat/ municipality/ municipal corporation/ gram sabha as the case may be, two experts on Rehabilitation and technical expert in the subject relating to the project. The experts may be drawn from Government departments/NGOs/private sector but shall not include members belonging to requiring body. The senior member shall be appointed as Chairman of Expert Group.

14.

Appraisal of Social Impact Assessment report by an Expert Group.

(1)

The Expert Group constituted under sub-section (1) of section 7 of the Act shall evaluate the Social Impact Assessment report and shall make its recommendation to that effect within a period of two months from the date of its constitution.

(2)

The recommendations of the Expert Group shall be made available in the telugu language to the concerned Gram Panchayat, Mandal Parishad, Municipality or Municipal Corporation, as the case may be, at village level or ward level in the affected areas and in the Offices of the District Collector, the Sub-Divisional Magistrate and the Tahsildar and shall be uploaded on the website of the State Government and the District concerned.

15.

Consideration of the Social Impact Assessment report, recommendations of the Expert Group etc.

(1)

The appropriate Government shall examine the Social Impact Assessment report, the recommendations of the Expert Group, if any, and decide such area for acquisition which would ensure minimum displacement of people, minimum disturbance to the infrastructure, ecology and minimum adverse impact on the individuals affected.

(2)

The decision of the appropriate Government under sub-rule (1) shall be made available in the telugu language to the concerned Grama Panchayat, Mandal Parishad, Municipality or Municipal Corporation, as the case may be, at village level or ward level in the affected areas and in the Offices of the District Collector, the Sub-Divisional Magistrate and the Tahsildar and shall be uploaded on the website of the district concerned.

Provided that where land is sought to be acquired for the purposes as specified in sub-section (2) of section 2, the Collector shall also ascertain as to whether the prior consent of the affected families as required under the proviso to sub-section(2) of section 2 has been obtained in Form-V appended to these rules by conducting of Grama Sabha.

16.

Web-based Work Flow and Management Information System (MIS) for Land Acquisition and Rehabilitation and Resettlement.

- The Commissioner, Rehabilitation & Resettlement shall create a dedicated, user-friendly website that may serve as a public platform on which the entire work flow of each acquisition case will be hosted, beginning with the notification of the Social Impact Assessment and tracking each step of decision-making, implementation and audit.

17.

Additional Norms with regard to the Social Impact Assessment Process.

- Parameters and a table of contents for the Social Impact Assessment Study and the Social Impact Management Plan are given in Form-III and Form-IV respectively, which should be used by the Social Impact Assessment team while preparing its report.

18.

Inventory of Waste, Barren and Un-utilized Lands.

- To ensure acquisition of minimum amount of land and to facilitate the utilization of unutilized public lands, the District Collector may prepare a district-level inventory report of waste, barren and unutilized public land, and land available in the Government land bank and that may be made available to the Social Impact Assessment team and Expert group. The inventory report shall be updated from time to time.

Chapter IV

Preliminary Notification and Rehabilitation and Resettlement Scheme

19.

Publication of Preliminary Notification.

(1)

After conclusion of the social impact assessment study and consent of the affected persons or Gram Sabha, as the case may be, when it appears to the District Collector that land is required or likely to be required in any area for any public purpose, a preliminary notification shall be issued in Form VI appended to these rules.

(2)

The preliminary notification shall be published in the manner provided in section 11 of the Act.

(3)

A copy of the notification shall be affixed at conspicuous places in the affected areas and shall also be informed to the public by beat of Tom-tom and shall be published in Telangana Gazette.

(4)

After issuing the preliminary notification, the Collector shall ensure completion of the exercise of updating land records within a period of two months as specified here under:-

(a)

Delete the entries of dead persons;

(b)

Enter the names of the legal heirs of the deceased persons;

(c)

Take effect of the registered transactions of the rights in land such as sale, gift, partition, etc.

(d)

Make all entries of the mortgage in the land records;

(e)

Delete the entries of mortgage in case the lending agency issues letter towards full payment of loans taken;

(f)

Make necessary entries in respect of all prevalent forest laws;

(g)

Make necessary entries in case of the Government land;

(h)

Make necessary entries in respect of assets in the land like trees, wells, etc.

(i)

Make necessary entries of share croppers in the land

(j)

Make necessary entries of crops grown or sown and the area of such crops, and

(k)

Any other entries or up-dating in respect of land acquisition, rehabilitation and resettlement.

20.

Preliminary survey of land proposed for acquisition.

- The officer authorised by the District Collector to conduct preliminary survey shall have all the powers as provided under section 12.

21.

Disposal of objections.

(1)

The Land Acquisition Officer after hearing all objections and making enquiry as provided under section 15(2) shall submit a report along with his recommendations on the objections to the District Collector for decision.

(2)

The decision of the District Collector shall be final.

22.

Preparation of Rehabilitation and Resettlement Scheme and Public Hearing.

(1)

On publication of the preliminary notification under sub-section(1) of section 11 by the Collector, the Administrator for Rehabilitation and Resettlement shall conduct a survey and undertake a census of the affected families within a period of two months from the date of publication of such preliminary notification.

(2)

In the survey conducted and the census of the affected families so undertaken by the Administrator, he shall collect the data based on the Social Impact Assessment report as well as collect the data from the secondary sources such as Panchayat and Government records and verify that data by door visit of the affected families and by site visits in case of infrastructure in the affected area.

(3)

The draft Rehabilitation and Resettlement Scheme prepared by the Administrator shall in addition to the particulars mentioned in the subsection (2) of section 16, contain the following:

(i)

List of likely to be displaced families;

(ii)

List of infrastructure in the affected area;

(iii)

List of land holdings in the affected area;

(iv)

List of trades/business in the affected area;

(v)

List of landless people in the affected area;

(vi)

List of persons belonging to disadvantageous groups like persons belonging to Scheduled Castes or Scheduled Tribes, handicapped persons in the affected area;

(vii)

List of landless agricultural labourers in the affected area;

(viii)

List of unemployed youth in the affected area.

(4)

The Administrator shall prepare comprehensive and detailed draft Rehabilitation and Resettlement Scheme, discuss in the Grama Sabha or municipality concerned and give wide publicity in the manner prescribed in rule 12.

(5)

The Administrator or an officer authorized by him shall conduct a public hearing in the affected areas on such date, time and venue as decided by giving advance notice of fifteen days. The provisions of rule 11 relating to the public hearing shall, mutatis mutandis, apply to the public hearing in this case also.

23.

Publication of the Approved Rehabilitation and Resettlement Scheme.

- The Commissioner of Rehabilitation and Resettlement shall publish the approved Rehabilitation and Resettlement Scheme in the affected area by affixing in conspicuous places in addition to making it public by other means as provided in section 18.

24.

Development Plan for Scheduled Castes or Scheduled Tribes Families.

- The Development Plan to be prepared in cases of a project involving land acquisition on behalf of a requiring body which involves involuntary displacement of the Scheduled Castes or Scheduled Tribes families under section 41 shall be in Form VIII appended to these rules.

Chapter V

Declaration, Award and Compensation

25.

Publication of Declaration for Acquisition.

(1)

Upon receipt of a report of the Collector as provided under sub-section(2) of section 15, a declaration for acquisition of the land under sub-section(1) of section 19 of the Act along with the summary of the Rehabilitation and Resettlement Scheme shall be made by the District Collector in Form VII appended to these rules. However, no such declaration shall be made unless the requiring body has deposited an amount in full towards the cost of acquisition of the land.

(2)

The said declaration shall be published in the manner prescribed under section 19 (4) and also in the affected areas by way of affixing a copy of the declaration in Telugu language at conspicuous places in the Panchayat, Mandal, Municipality or Municipal Corporation, as the case may be, under which the affected area falls.

26.

Land Acquisition Award.

(1)

The Collector after enquiry into and disposal of the objections, if any, raised by the interested persons in pursuance of the public notice published and given under sub-section (1) of section 21, shall make land acquisition Award under section 23 of the Act in Form IX appended to these rules.

27.

Rehabilitation and Resettlement Award.

(1)

The Collector shall also make Rehabilitation and Resettlement Award for each affected family in accordance with the Second Schedule of the Act in Form X appended to these rules and hand over family wise Awards to each affected family.

(2)

Where any rehabilitation and resettlement benefit is found to have been availed of by making false claim or through fraudulent means, its value shall be liable to be recovered under sub-section (2) of section 84 and if such person refuses to refund the same, then such amount shall be recovered as an arrear of land revenue invoking the provisions of The A.P. Revenue Recovery Act, 1864.

28.

Compensation.

(1)

The compensation shall be calculated as per the provisions laid down under section 26 to section 30 read with the First Schedule of the Act and paid to all parties whose land or other immovable property has been acquired. RB department shall issue guidelines for valuation of structures including depreciation to reflect true values in view of applicability of 100% solatium. The multiplication factor under item(2) of the First Schedule for rural areas shall be 1.5 other than scheduled areas and 2 for scheduled (tribal) areas subject to any further notification as may be notified by Government.

(2)

The one-time grant to artisans, small traders and others under item (8) of second schedule of Act shall be Twenty Five Thousand Rupees.

(3)

The manner in which fishing rights shall be allowed to affected families in cases of irrigation or hydel projects under item (9) of second schedule of Act shall be notified by fisheries department in consultation with irrigation department.

(4)

The payment of compensation shall be made expeditiously through account payee cheques/electronic mail transfer.

(5)

Where any excess amount is proved to have been paid to any person as a result of the correction made in an award under sub-section (1) of section 33 and such person refuses to refund the said excess amount paid to him, then such amount shall be recovered as an arrear of land revenue invoking the provisions of Revenue Recovery Act,1864. Provided such recovery proceedings under the said Act shall not be initiated, after three years, from the date on which the amount is found to have been paid in excess.

29.

Limits on extent of land under section 2(3)(a) read with Section 46 of the Act.

- The limits on extent of land beyond which provisions of Rehabilitation and Resettlement under the Act in cases of purchase by a private company through Private Negotiation with the owner of the land shall be 2,000 acres subject to any further notification as may be notified by Government.

30.

The Government, by notification, may create District and State Negotiation Committees for the negotiated settlements of the compensation, which shall be in tune with Sec 107 of the Act.

31.

The land acquisition shall not exceed 15% of the net present cultivable area in the State and the limits in the districts shall be prescribed by the District Collectors concerned as contemplated under Section 10(4) of the Act subject to any further notification as may be notified by Government.

Chapter VI

Administrator and Rehabilitation and Resettlement Committee and State Monitoring Committee

32.

Power, duties and responsibilities of the Administrator.

- The Administrator shall exercise the powers and perform the duties and have the responsibilities as follows-

(a)

To conduct a survey and undertake a census of the affected families in the manner and within time as provided under these rules;

(b)

To prepare a draft Rehabilitation and Resettlement Scheme;

(c)

To publish the draft scheme by the mode provided under these Rules;

(d)

To make the draft scheme available to the concerned persons and authorities;

(e)

To organize and conduct public hearings on the draft scheme;

(f)

To provide an opportunity to the Requiring Body to make suggestions and comments on the draft scheme;

(g)

To submit the draft scheme to the Collector;

(h)

To publish the approved Rehabilitation and Resettlement Scheme in the affected area;

(i)

To help and assist the Collector in preparing the Rehabilitation and Resettlement award;

(j)

To monitor and supervise the implementation of the Rehabilitation award;

(k)

To assist in post-implementation audit of Rehabilitation and Resettlement, and

(l)

Any other work required to be done for Rehabilitation and Resettlement.

33.

Procedure of State Monitoring Committee for Rehabilitation and Resettlement and Allowances of the experts associated with it.

(1)

The State Monitoring Committee, as may be constituted by the government, shall have its first meeting for review and monitoring the implementation of the Rehabilitation and Resettlement Schemes for the projects within a month of the publication of the said approved Schemes by the Commissioner of the Rehabilitation and Resettlement under section 18. Thereafter, the meetings of the Committee shall be held once in three months to review and monitor the implementation of the rehabilitation and resettlement schemes. The Commissioner (RR) shall be the Member Convener.

(2)

The experts associated with the State Monitoring Committee shall be paid an amount of rupees one thousand as sitting fee and travelling and daily allowance at the rate admissible to the Class-I rank Officers of the State Government for journeys outside headquarter.

Chapter VII

Miscellaneous

34.

Reconveyance of Land to the Original Land Owner.

(1)

Where any land acquired under the Act remains unutilized for a period of five years from the date of taking over the possession by the requiring body, the same shall be returned to the original owner or owners or their legal heirs, as the case may be, or to the Land Bank by issuing a notice to the Requiring Body for whom the land was acquired and by giving an opportunity of being heard and by passing the necessary written order by the District Collector in this behalf. The reconveyance of land to original owner shall be subject to payment of current market value as fixed by District Collector or Award amount received including enhancements made by courts with 9% interest from date of payment whichever is higher.

(2)

After passing the written order as above the District Collector shall take the possession of the acquired land for the purpose of returning the same to the original owner or owners or their legal heirs, as the case may be, or to the Land Bank.

(3)

If the Requiring Body does not handover possession of the said land to the Collector, Collector shall be competent to take the help of Executive Magistrate and police force to take the possession by giving prior notice to the Requiring Body.

35.

Removal of Difficulties.

- If any difficulty arises as to the interpretation of any provisions of these Rules or in the implementation of such provisions, the State Government shall have powers to issue clarifications/directions for the purpose of removal of the difficulties.

Form-I

(See rule-3)

Requisition for Land Acquisition

From:

Name

and/or Designation of the Requiring Body

To:

1. The District Collector

District

2. Commissioner, RR,

Telangana State.

It is requested to acquire acre(s) of land for..... project/purpose and the details are furnished in Appendix I, II III along with three copies of Combined Sketch showing the lands to be acquired.

Requisite cost of acquisition including cost of social impact assessment study (SIA) is available and will be deposited in your office, as provided under provisions of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act-2013, as and when required by you. It is certified that the land to be acquired was demarcated on the field and all further necessary information and assistance will be provided on the date/time appointed/stipulated by you.

Yours faithfully

Requiring Body

Appendix-I

Name of the project:-

(1)

Name of the village-

(2)

Name of the Mandal-

(3)

Name of the Municipality/Municipal Corporation-

(4)

Name of the District-

(5)

Sy.Nos. to be acquired-

(6)

Total area under requisition (in acres/Sq.Yards)-

(7)

Boundaries of the area to be acquired-

East-

West-

North -

South-

(8)

Area of the agricultural and irrigated multi-cropped land

(9)

Reasons for inclusion of agricultural and irrigated multi-cropped land

(10)

Details of buildings and other structures, tanks, wells, trees, etc.,

(11)

Reasons for the inclusion of religious building, graveyard or tomb etc. for acquisition, if any.

Requiring Body

Appendix-II

Name of the project:-

1. Department or Government or Company, Local Authority, Institution:

2. Official designation of the requiring body:-

3. Purpose of Acquisition (in detail) :-

4. Whether the requisition is filed u/s 2(1) of the Act by the Government or Department for its own use hold and control :-

5. Whether the requisition is filed u/s 2(1)(a) to 2(1) (f) of the Act:-

6. Whether the requisition is filed u/s 2(2) (a) or (b) of the Act :-

7. How many families are affected as described u/s 3(c)(i) to (vi) of the Act:-

8. Whether the requisition is filed u/s 40 of the Act :-

9. If so, on what ground?

10. Has the land to be acquired already been taken over from the owners by private negotiation?

11. If so, on what date and on what terms (please state the terms of negotiation in short and attach the copy of it)

12. Date of issue of administrative approval for the project (copy to be attached) in case of Government or department or local authority.

13. Reasons for delay in filing requisition, if requisition is filed after 6 weeks from the date of administrative approval of the project in case of Government or department or local authority.

14. By what time possession of the land is required.

Requiring Body

Appendix-III

Certificate to be furnished along with the requisition for acquisition of land by the requiring authorities

Name of the project:-

1.

) Certified that the project for which the land is sought to be acquired has been administratively approved vide Department letter No: Dated for acquisition under the Act.

2.

) The estimated cost of the project is of Rs. and necessary budget was sanctioned and funds are available towards cost of acquisition.

3.

) The Department undertakes to pay the full amount in case of decree by the Land Acquisition, Rehabilitation and Resettlement Authority / High Court / Supreme Court as and when asked to do so by the Collector/District Collector.

Requiring Body

Form-II

Part -A. (See Sub-rule(1) of rule-8)

Terms of Reference and Processing Fee for the SIA

The State SIA Unit will review the proposal for land acquisition sent by the Appropriate Government and produce a project-specific Terms of Reference (ToR) and budget. Based on the ToR and budget, a processing fee will be determined, which must be deposited by the Requiring Body before the notification of the SIA can be issued. The ToR shall include the following information:

(i)

A brief description of the project, project area and the extent of lands proposed for acquisition

(ii)

The objectives of the SIA and all the activities that must be carried out by the SIA team

(iii)

Sequencing, schedule and deadlines for deliverables with dates for the SIA process, based on the size and complexity of the project and land acquisition, and whether consent of Gram Sabhas and/or land owners is required to be sought

(iv)

The appropriate size and profile of the SIA team required (including field surveyors, if needed) to conduct the SIA for the specific project

(v)

A project-specific budget based on the ToR, with a clear break-up of costs for each item/activity

(vi)

The schedule for the disbursement of funds to the SIA team tied to clearly-defined deliverables in the SIA process

(vii)

The processing fee will be determined based on the ToR and budget developed for each specific project and will be

based on the type, size, location, and sensitivity of the project and the land proposed for acquisition

(viii)

Information regarding the processing fee bands and the cost for separate components/line items must be made consistent and easily accessible, so that the Requiring Body can factor this into its costs in advance. These rates must be reviewed and revised from time to time.

(ix)

A fixed proportion of the fee will go towards meeting the costs of the State SIA Unit

Form-II

Part-B. Notification of the SIA (See sub-rule (2) of rule 6)

The Notification of the SIA must include:

(i)

Name of project developer, a brief description of the proposed project and the extent of the lands proposed for acquisition, the project area and the affected areas to be covered by the SIA

(ii)

The main objectives of the SIA and key activities including (a) consultations (b) survey (c) public hearing/s.

(iii)

If consent of Gram Sabhas and/or land owners is required, the notification must state this.

(iv)

The timeline for the SIA and the final deliverables (SIA Report and SIMP) along with the manner of their disclosure must be specified

(v)

Statement that any attempt at coercion or threat during this period will render the exercise null and void.

(vi)

Contact information of the State SIA Unit

Form-III

Social Impact Assessment Report

(See Sub-rule(4) of rule-6)

I Part-A: List of socio-economic and cultural parameters to be covered by the SIA

1. Demographic details of the population in the project area

? Age, sex, caste, religion

? Literacy, health and nutritional status

2. Poverty levels

? Vulnerable groups

- Women, children, the elderly, women-headed households, the differently abled

? Kinship patterns and women's role in the family

? Social and cultural organisation

? Administrative organisation

? Political organisation

? Civil society organisations and social movements

3. Land use and livelihood

? Agricultural and non-agricultural use

? Quality of land - soil, water, trees, etc.

? Livestock

? Formal and informal work and employment

? Household division of labour and women's work

? Migration

? Household income levels

? Livelihood preferences

? Food security

4. Local economic activities

? Formal and informal, local industries

- ? Access to credit
- ? Wage rates
- ? Specific livelihood activities women are involved in
- 5. Factors that contribute to local livelihoods
 - ? Access to natural resources
 - ? Common property resources
 - ? Private assets
 - ? Roads, transportation
 - ? Irrigation facilities
 - ? Access to markets
 - ? Tourist sites
 - ? Livelihood promotion programmes
 - ? Co-operatives and other livelihood-related associations
- 6. Quality of the living environment
 - ? Perceptions, aesthetic qualities, attachments and aspirations
 - ? Settlement patterns
 - ? Houses
 - ? Community and civic spaces
 - ? Sites of religious and cultural meaning
 - ? Physical infrastructure (including water supply, sewage systems etc.)
 - ? Public service infrastructure (schools, health facilities, anganwadi centres, public distribution system)
 - ? Safety, crime, violence
 - ? Social gathering points for women
- II Part-B: Key impact areas Impacts on land, livelihoods and income
 - Level and type of employment Intra-household
 - employment patterns Income levels
 - Food security
 - Standard of living
 - Access and control over productive resources
 - Economic dependency or vulnerability
 - Disruption of local economy
 - Impoverishment risks
 - Women's access to livelihood alternatives
- 1. Impacts on physical resources
 - Impacts on natural resources, soil, air, water, forests
 - Pressures on land and common property natural resources for livelihoods
- 2. Impacts on private assets, public services and utilities - Capacity of existing health and education facilities
 - Capacity of housing facilities
 - Pressure on supply of local services
 - Adequacy of electrical and water supply, roads, sanitation and waste management system
 - Impact on private assets such as bore wells, temporary sheds etc.
- 3. Health impacts
 - Health impacts due to in-migration
 - Health impacts due to project activities with a special emphasis on
 - Impact on women's health
 - Impact on the elderly
- 4. Impacts on culture and social cohesion
 - Transformation of local political structures
 - Demographic changes
 - Shifts in the economy-ecology balance
 - Impacts on the norms, beliefs, values and cultural life

- Crime and illicit activities
- Stress of dislocation
- Impact of separation of family cohesion
- Violence against women

5. Impacts at different stages of the project cycle

The type, timing, duration, and intensity of social impacts will depend on and relate closely to the stages of the project cycle. Below is an indicative list of impacts:

Pre-construction phase

- Interruption in the delivery of services
- Drop in productive investment
- Land speculation
- Stress of uncertainty
- Construction phase
- Displacement and relocation
- Influx of migrant construction workforce
- Health impacts on those who continue to live close to the construction site

6. Operation phase

- Reduction in employment opportunities compared to the construction phase
- Economic benefits of the project
- Benefits on new infrastructure
- New patterns of social organisation

7. De-commissioning phase

- Loss of economic opportunities
- Environmental degradation and its impact on livelihoods

8. Direct and indirect impacts

- "Direct impacts" will include all impacts that are likely to be experienced by the affected families
- "Indirect impacts" will include all impacts that may be experienced by those not directly affected by the acquisition of land (i.e. Direct land and livelihood losers), but those living in the project area

9. Differential impacts

- Impact on women, children, the elderly and the different abled
- Impacts identified through tools such as Gender Impact Assessment Checklists, and Vulnerability and Resilience Mapping

10. Cumulative impacts

- Measureable and potential impacts of other projects in the area along with the identified impacts for the project in question.
- Impact on those not directly in the project area but based locally or even regionally.

III PART-C. Table of Contents for SIA Report and Social Impact Management Plan

1.

Chapter

Contents

Executive Summary

- Project and public purpose
- Location Size and attributes of land acquisition
- Alternatives considered
- Social Impacts
- Mitigation measures
- Assessment of social costs and benefits

2.

Detailed Project Description

- Background of the project, including developers

background and governance/ management structure

- Rationale for project including how the project fits the public purpose criteria listed in the Act
- Examination of alternatives
- Phases of project construction
- Core design features and size and type of facilities
- Need for ancillary infrastructural facilities
- Work force requirements (temporary and permanent)
- Details of SIA/EIA if already conducted and any technical feasibility reports
- Applicable legislations and policies

3.

Team composition, Approach, methodology and schedule of the SIA

- List of all team members with qualifications. Gender experts to be included in team
- Description and rationale for the methodology and tools used to collect information for the SIA - Sampling methodology used
- Overview of information/data sources used. Detailed reference must be included separately in the forms
- Schedule of consultations with key stakeholders and brief description of public hearings conducted. Details of the public hearings and the specific feedback incorporated into the Report must be included in the forms

4.

Land assessment

- Describe with the help of the maps, information from land inventories and primary sources
- Entire area of impact under the influence of the project (not limited to land area for acquisition) - Total land requirement for the project
- Present use of any public, unutilised land in the vicinity of the project area
- Land (if any) already purchased, alienated, leased or acquired, and the intended use for each plot of land required for the project
- Quantity and location of land proposed to be acquired for the project
- Nature, present use and classification of land and if agricultural land, irrigation coverage and cropping patterns
- Size of holdings, ownership patterns, land distribution, and number of residential houses
- Land prices and recent changes in ownership, transfer and use of lands over the last 3 years

5.

Estimation and enumeration (where required) of affected Families and assets

- Estimation of the following types of families that are (a) Directly affected (own land that is proposed to be acquired):
 - Are tenants/occupy the land proposed to be acquired
 - The Scheduled Tribes and other traditional forest dwellers who have lost any of their forest rights
 - Depend on common property resources which will be affected due to acquisition of land for their livelihood
 - Have been assigned land by the State Government or the Central Government under any of its schemes and such land is under acquisition;
 - Have been residing on any land in the urban areas for preceding three years or more prior to the acquisition of the land
 - Have depended on the land being acquired as a primary source of livelihood for three years prior to the acquisition
- (b) Indirectly impacted by the project (not affected directly by the acquisition of own lands)
- (c) Inventory of productive assets and significant lands

6.

Socio-economic and profile (affected area and resettlement site)

- Demographic details of the population in the project area-I
- Income and poverty levels
- Vulnerable groups
- Land use and livelihood
- Local economic activities
- Factors that contribute to local livelihoods
- Kinship patterns and social and cultural organisation
- Administrative organisation
- Political organisation
- Community-based and civil society-organisations
- Regional dynamics and historical change processes
- Quality of the living environment

7.

Social impacts

- Framework and approach to identifying impacts
- Description of impacts at various stages of the project cycle such as impacts on health and livelihoods and culture. For each type of impact, separate indication of whether it is a direct/indirect impact, differential impacts on different categories of affected families and where applicable cumulative impacts
- Indicative list of impacts areas include:
impacts on land, livelihoods and income, physical resources,

private assets, public services and utilities, health, culture and social cohesion and gender based impacts

8.

Analysis of costs and benefits and

Recommendation Acquisition

- Final conclusions on: assessment of public purpose, less-displacing alternatives minimum on requirements of land, the nature and intensity of social impacts, the viability of the mitigation measures and the extent to which mitigation measures described in the SIMP will address the full range of social impacts and adverse social costs.

-The above analysis will use the equity principle as a criteria of analysis for presenting a final recommendation on whether the acquisition should go through or not

9.

References and Forms

- For reference and further information

Form IV

Social Impact Management Plan

(See Sub-rule(2) of Rule-15)

(a)

Approach to mitigation

(b)

Measures to avoid, mitigate and compensate impact

(c)

Measures that are included in the terms of RR and compensation as outlined in the Act

(d)

Measures that the Requiring Body has stated it will introduce in the Project Proposal

(e)

Additional measures that the Requiring Body has stated it will undertake in response to the findings of the SIA process and public hearings

(f)

The SIMP must include a description of institutional structures and key person responsible for each mitigation measure and timelines and costs for each activity

Form -V

Prior Written Consent or Declaration Form

(See sub rule(2) of rule 15)

S.No.

Details of the Person Concerned

1.

Name of the person(s) in whose name the land is registered:

2.

Name of the spouse:

3.

Name of father/ mother:

4.

Address:

5.

Village

6.

Gram Panchayat/Municipality/Township:

7.

Mandal

8.

District:

9.

Name of other members in the family with age:
(including children and adult dependents)

10.

Extent of land owned:

11.

Disputed lands if any

12.

Purchase/leases/grants, if any

13.

Any other right, if any:

14.

Regarding the acquisition of my land by the
government, I wish to state the following: (please circle one of
the below):

I have read/read out the contents of this consent form and explained to me in Telugu language and

I do not agree to this acquisition/

I agree to this acquisition.

Signature/ Thumb impression of the affected family(s) and date:

Form VI

(See Sub-rule(1) of rule-19 and Section-11(1) of the Act-30/2013)

Government of Telangana Revenue (LA) Department

or

Collector/Joint Collector / Special Collector (LA) / SDC (LA) Preliminary Notification

No. Dated.

Whereas it appears to the Government of Telangana/Collector that a total of acres land is required in the
..... Village Mandal District for public purpose, namely,
..... Social Impact Assessment Study was carried out by state SIA Unit and a report
submitted. The summary of the Social Impact Assessment Report is as follows:

..... A total families are likely to be displaced due to the land
acquisition. The reason necessitating such displacement is given below. Joint Collector/Additional Joint Collector is
appointed as Administrator for the purpose of rehabilitation and resettlement of the affected families. Therefore it is
notified that for the above said project in the Village of Mandal District a piece of land
measuring, more or less acres viz, hectare of standard measurement, whose detail description
is as following, is under acquisition:

Sl.No.

Survey No.

Type of Title

Type of Land

Area under Acquisition (in acre)

Name Address of person interested

Boundaries

N.

S.

E

W
Trees
Variety
Number
Structures
Type
Plinth area

This notification is made under the provisions of Section-11(1) of The Right to Fair Compensation and Transparency in Land acquisition, Rehabilitation and Resettlement Act, 2013 (Act no.30/2013), to all whom it may concern.

A plan of the land may be inspected in the office of the District Collector on any working day during the working hours. The Government of Telangana/Collector-cum-Appropriate Government is pleased to authorize Officer and his staff to enter upon and survey land, take levels of any land, dig or bore into the sub-soil do all other acts required for the proper execution of their work as provided and specified in section-12 of the said Act.

Under section 11(4) of the Act, no person shall make any transaction or cause any transaction of land i.e. sale/purchase, etc., or create any encumbrances on such land from the date of publication of such notification without prior approval of the Collector.

Objections to the acquisition, if any, may be filed by the person interested within 60 (sixty days) from the date of publication of this notification as provided under section 15 of the Act before District Collector.

Since the land is urgently required for the project falling within the purview of Section 40(2), the State Government has decided to not carry out the Social Impact Assessment Study, vide G.O.Ms.No., Department, dated .

Place:

Date:

District Collector

Form VII

(See Sub-rule(1) of rule-25 and Section-19(1) of the Act-30/2013)

Government of Telangana Revenue (LA) Department

or

Collector/Joint Collector / Special Collector (LA) / SDC (LA) Declaration

No: Dated.

Whereas it appears to the Government of Telangana /Collector that a total of..... acres land is required in the Village..... Mandal District for public purpose, namely,

Therefore declaration is made that a piece of land measuring, more or less acres viz; hectares of standard measurement under acquisition for the above said project in the Village Mandal District whose detailed description is as following:

Sl.No.

Survey No.

Type of Title

Type of Land

Area under Acquisition (in acre)

Name Address of person interested

Boundaries

N.

S.

E

W

Trees

Variety

Number

Structures

Type

Plinth area

This declaration is made after hearing of objections of persons interested and due enquiry as provided u/s 15 of the Act No-30/2013. The number of families likely to be resettled due to Land Acquisition is for whom Resettlement area has been identified, whose brief description is as following:-

Village Mandal District Area acres.

Mines of coal, iron-stone, slate or other minerals lying under the said land or any particular portion of the said land, except such parts of the mines and minerals which may be required to be dug or removed or used during the construction phase of the project for the purpose of which the land is being acquired, are not needed.

A plan of the land may be inspected in the office of the Land Acquisition Officer on any working day.

A summary of the Rehabilitation and Resettlement Scheme is appended.

District Collector

Form VIII

(See rule-24)

Format for Development Plan under RR scheme for SC/ST families displaced due to land acquisition

Sl. No.

Name of the Claimant/family head

Permanent Address

Entitlements

Remarks

1. Land up to one

acre for agricultural, horticultural, cattle grazing field per family shall be provided.

2. Provision of

dwelling housing unit per family, Drinking Water facility toilette etc.,

3. One time financial

assistance of Rs. One lakh fifty thousand per family shall be given.

4. For landless

laborers employment shall be provided under MNREGA and any other job providing scheme,

5. Skill development

through different training programs for the youth of affected family.

6. Subsistence grant

for displaced family allowance equivalent to Rs Three thousand per month for a year should be granted from the date of award.

7. For cattle shed and petty shop each effected

family shall be provided minimum Rupees twenty five thousand.

Form IX

(See rule-26 and section 23 30 of the Act 30 of 2013)

Land Acquisition Award

Land Acquisition case No:

1.

Name of the Project -

2.

Number and date of declaration under which the land is to be acquired

3.
Situation and extent of the land in acres, the number of field plots on the survey map, the village in which situated with the number of mile plan if any.
4.
Description of the land, i.e., whether fallow, cultivated, homestead, etc. If cultivated, how cultivated?
5.
Names of persons interested in the land and the nature of their respective interests.
6.
Amount allowed for the land itself, without trees, buildings etc., if any
7.
Amount allowed out of such sum as compensation for the tenants interest in the land.
8.
Basis of calculation:
9.
Amount allowed for trees, houses or any other immovable things.
10.
Amount allowed for crops.
11.
Additional compensation on the market value under section 30(3)
12.
Damages under section 28 of Act 30 of 2013
13.
Solatium u/s 30(1)
14.
Award under section 23 and 30 of Act 30 of 2013
15.
Particulars of abatement of Government Revenue, or of the capitalized value paid, the date from which the abatement takes effect.
16.
Apportionment of the amount of compensation.
Serial No.
Name of claimants
Amount payable to each
Bank A/c No.
Remarks
Area (in Acre)
17.
Date on which possession was taken u/s. 38(1) 40(1) of Act of 30/2013.
If u/s. 40(1) the number and date of the order of government giving authority to do so.
Date:
Signature
Form X

(See rule-27 and 2nd Schedule of the Act)

Award for Rehabilitation and Resettlement

Land Acquisition case No:

1.

Name of the Project -

2.

Number and date of declaration under which the land is to be acquired

3.

Situation and extent of the land in acres, the number of field plots on the survey map, the village in which situated with the number of mile plan if any.

4.

Description of the housing units, transportation cost, housing allowances, annuity, employment subsistence grant, cattle shed, petty shop, one time resettlement allowances etc.

5.

Name/ Names of persons interested in the land and the nature of their respective claim for rehabilitation and resettlement.

6.

Apportionment of the amount of compensation

Area (in acres.)

Sl. No.

Name of claimants/affected family

R R entitlements

Bank A/c.No.

Amount payable to each

Non monetary entitlements

Remarks

House to be allotted

Land to be allotted

Fishing rights

Annuity

Employment

transportation cost,

Housing allowances,

Annuity

Employment

Subsistence grant

Cattle shed,

Petty shop,

One time resettlement

allowances

One time resettlement allowances

7.

Date on which R R entitlements given to the affected family.

8.

Basis of calculation:

9.

Amount allowed for trees, houses or any other immovable things.

10.

Amount allowed for crops.

11.

Additional compensation on the market value under section 30(3)

12.

Damages under section 28 of Act 30 of 2013

13.

Solatium u/s 30(1)

14.

Award under section 23 and 30 of Act 30 of 2013

15.

Particulars of abatement of Government Revenue, or of the capitalized value paid, the date from which the abatement takes effect.

Apportionment of the amount of compensation.

Serial No.

Name of claimants

Amount payable to each

Bank A/c. No.

Remarks

Area (in Acre)

16.

Date on which possession was taken u/s. 38(1) 40(1) of Act of 30/2013.

If u/s. 40(1), the number and date of the order of government giving authority to do so.

Date:

Signature

Form XI

(Under third schedule of Act-30/2013)

Format for Provision of Infrastructural Amenities under R and R scheme for families displaced due to Land Acquisition

Sl.No.

Components

Details of infra-structure amenities

1.

Roads

2.

Drainage

3.

Drinking water

4.

Drinking water for cattle

5.

Grazing land

6.

Fair Price Shops

7.

Panchayat buildings

8.

Post Offices

9.

Fertilizer storage

10.

Irrigation facilities

11.

Transport facilities

12.

Burial or cremation ground

13.

Toilet points

14.

Electric connections

15.

Nutritional services

16.

Schools

17.

Sub-health centre

18.

Primary Health Centre

19.

Play ground

20.

Community centre

21.

Places of worship

22.

Separate land for tribal institutions

23.

Timber forest produce

24.

Security arrangements

25.

Veterinary services

Signature

Related AI tags, queries and research notes

Translation